

disregard of the rights or safety of others to establish that Defendants acted with sufficient malice to support a claim for punitive damages.

In *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 895-896, the California Supreme Court ruled that conscious disregard of safety may constitute malice if the plaintiff establishes that “the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” In *College Hospital, Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725, the court stated that for malice, there is more than just a requirement of a willful and conscious disregard; there must also be despicable conduct, which is defined as “base, vile, or contemptible.”

Here, Plaintiff alleged sufficient facts to establish that Defendants were aware of the probable dangerous consequences of their conduct, as they alleged that Defendants refused to repair the Property’s uninhabitable conditions despite receiving Plaintiff’s repeated complaints and City’s citations for health and safety violations. (Complaint, ¶¶ 21-23, 29-34.) Plaintiff further alleges that Defendants knew or should have known that their failure to repair the Property would render it untenable, but acted with callous and intentional disregard for Plaintiff’s health, safety, and well-being. (Complaint, ¶¶ 31-32, 37-38.) Accordingly, Plaintiff alleged sufficient facts to establish that Defendants’ deliberate failure to repair the Property’s uninhabitable conditions amounts to despicable conduct.

4.

CASE #	CASE NAME	HEARING NAME
MCC1900422	HAACKE VS SHEA	MOTION FOR ATTORNEY’S FEES

Tentative Ruling: Motion is denied without prejudice.